

ABORIGINAL AND TREATY RIGHTS: THE IMPORTANCE OF HISTORY AND PROTOCOL

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Introduction

Aboriginal rights in Canada reflect some of the political, social and economic aspects of Aboriginal societies. Historic Treaties between Aboriginal peoples and colonial governments purport to reflect an agreement reached by the parties. Some Aboriginal communities have recently claimed that these treaties do not reflect the agreements to which their ancestors agreed. How do the descendants of the treaty negotiators know the terms to which their ancestors agreed? The treaty terms have been passed down to newer generations in the same manner that knowledge has always been passed down by Aboriginal peoples: oral accounts.

It is these oral historical accounts that are used in Courts today as evidence of the practices of Aboriginal societies, together with written historical records if they are available. In order to assert Aboriginal or treaty rights, a community must possess and present evidence that reflects their society's political, social and economic practices, including evidence of their understanding of the relationship between themselves and the colonists. This has been a challenge for Canada's Aboriginal communities due to the impacts of disease and assimilation policies like mandatory attendance at Indian residential schools. Many communities were almost wiped out from diseases like smallpox, leaving few knowledge holders behind. With residential schools, children were forcibly removed from their family, community and culture to unlearn Aboriginal political, social and economic practices for those of Anglo Canadian society.

Nonetheless, Aboriginal communities continue to exist in Canada, evolving as all societies do to survive, yet maintaining or, for some communities, revitalizing their

Aboriginal culture and asserting their Aboriginal rights and title based on history as they know it.

History

Aboriginal peoples in what is now Canada, historically, have been an oral culture, passing knowledge from one generation to the next by oral accounts. Today the passing of knowledge is a combination of oral accounts and written text, an example of the tension between the Aboriginal societies' evolution and their sustaining their culture.

The arrival of Europeans in western Canada, and specifically British Columbia, is fairly recent in light of the length of time that peoples have inhabited the area. When the Europeans arrived in Aboriginal territory, the two parties recorded their meetings as was customary in the respective cultures. The Europeans wrote their accounts in their journals, letters and. Aboriginal peoples and the Canadian governments have both relied on these written accounts in Aboriginal and treaty rights cases. Aboriginals shared their accounts orally, returning to their respective communities to share with community members their understanding of meetings with colonial representatives. Treaty 8 is an example of a written text and legally binding agreement where the written evidence of one party, the government, differs from the oral accounts of the other, the Cree and Dene, the Aboriginal signatories to the agreement. The Aboriginal community argued that they did not agree to give up any of their right to hunt, fish and trap to make a living while the government representatives responded that that term is not reflected in the written agreement endorsed by both parties.¹ These oral accounts were passed down from one

¹ Treaty 8,

generation to the next. In western society, as with many other societies that rely on and value the written word, the written text trumps the oral accounts.

Western society is beginning to appreciate that Aboriginal societies were and are just as evolved as European societies with respect to their political, social and economic systems and laws.

Canadian Legal Issues with Aboriginal Oral Evidence

In the Supreme Court of Canada decision in *Delgamuukw*², the court accepted the oral evidence submitted by the Gitksan and Wet'suwet'en. The court "assigned a limited role to aboriginal oral evidence" because it cannot be tested and verified under the Canadian legal system's rules of evidence. The court found Aboriginal oral evidence cannot be tested in court and is too local and subjective.³ However, this is a new area of the law thus we will see what future developments the future holds in this area.

Regardless of the uncertainty by the legal system about Aboriginal oral evidence, many Aboriginal communities continue to pass on their knowledge by oral accounts. To have the opportunity to obtain this knowledge, an Aboriginal community member must live in the community village or at least visit on a regular basis with those community members who can and are willing to share the knowledge.

Musqueam History and Oral Accounts

The origin of the name Musqueam used to be an oral account. It has now been written down so students of the language and culture can read the story. Shayla Point and I chose to paint the key character from that story, the two-headed serpent, on the drum as a reflection of the oral account that recounts the origin of the name Musqueam.

² *Delgamuukw v. British Columbia*, [1997] 3 S.C.R. 1010, 153 D.L.R. (4th) 193.

³ David Elliott, "Delgamuukw: Back to Court?" *Manitoba Law Journal*, (1998) 26 Man. L.J. 97 - 132 at paras. 4 and 21.

Additionally, we choose the image to reflect that we come from the same family tree, that is Musqueam's Point family. It is important in Aboriginal culture to know our family, both your ancestors and those descended from your ancestors. Knowledge and rights to culture such as songs are passed down through each family in the community. Along with that family knowledge comes community history and it is that family and community history that is now important for its use as evidence in Aboriginal and Treaty rights cases.

Protocol

The Treaty of Lancaster negotiations between the Iroquois and the Americans (Governors of Virginia) as recorded by Ben Franklin illustrate the protocol followed by colonial settlers and the Aboriginal peoples in their treaty negotiations. The English followed the protocols they were accustomed to and the Aboriginals followed their protocols. Sometimes both peoples exercised their protocols at the same events.

Protocol in treaty making is a significant aspect of the process. The protocols of either society reflected the importance of the treaty negotiations and agreements to each party. Protocols continue today in government meetings, proceedings and in the courts. Aboriginal Communities too continue the protocols relevant to their culture. The historical accounts such as those recorded by Ben Franklin or written accounts of the Covenant chain Treaties describe the protocols of Aboriginal peoples like the Iroquois. The smoking of the calumet pipe reflected the sacred commitment and on-going relationship between the parties. The treaties were not final but reflecting a relationship that would be renewed annually as reflected by language as "keep the fire burning."⁴

⁴ Town of Lancaster, "A Treaty with the Indians of the Six Nations," Proceedings as recorded by 8. Franklin, June 22 - July 4, 1744.

Today, many Aboriginal communities are revitalizing dormant protocols that were hidden or dormant while Canadian governments attempted to assimilate Aboriginal peoples. In Musqueam, at a formal welcome of visitors to the village or to Musqueam traditional territory, drummers and singers welcome guests with a song. The Musqueam Warriors sing traditional Musqueam songs and perform traditional dances when asked to open a major event or welcome guests in to Musqueam territory. This is Musqueam protocol that has been revitalized in recent years. At the recent signing at the Victoria legislature of the Reconciliation, Settlement and Benefits Agreement between the Musqueam Indian Band and the Province, the Musqueam Warriors responded to a welcome from local chiefs with traditional song and dance.

It was important for me, as a part of the project for this course and, more importantly for personal reasons, to learn the Musqueam welcome song. When I am present at a welcoming, I can join other community members in welcoming guests into our territory.

Conclusion

The Aboriginal and Treaty rights course combined with the opportunity to present a project in another medium other than written text has allowed Shayla Point and myself to learn a song that is used as a part of Musqueam Protocol. It has also given us an opportunity to learn some Musqueam history through researching our genealogy and the family name. With respect to the legal aspect of Aboriginal and treaty rights, we have had the opportunity to review the recent settlement agreement and related litigation.

hay chxw q'u siy'em'.

Thank you, respected one.